

interest that cannot be doubted. See *United States v. Nixon*, *supra*.¹⁷

In light of these objectives, the scheme adopted by Congress for preservation of the appellant's Presidential materials cannot be said to be overbroad. It is true that among the voluminous materials to be screened by archivists are some materials that bear no relationship to any of these objectives (and whose prompt return to appellant is therefore mandated by § 104 (a)(7)). But these materials are commingled with other materials whose preservation the Act requires, for the appellant, like his predecessors, made no systematic attempt to segregate official, personal, and private materials. 408 F. Supp., at 355. Even individual documents and tapes often intermingle communications relating to governmental duties, and of great interest to historians or future policy-makers, with private and confidential communications. *Ibid*.

Thus, as in the Presidential libraries, the intermingled state of the materials requires the comprehensive review and classification contemplated by the Act if Congress' important objectives are to be furthered. In the course of that process, the archivists will be required to view the small fraction of the materials that implicate Presidential confidentiality, as well as personal and private materials to be returned to appellant. But given the safeguards built into the Act to prevent disclosure of such materials and the minimal nature of the intrusion into the confidentiality of the Presidency, we believe that the claims of Presidential privilege clearly must yield to the important congressional purposes of preserving the materials and maintaining access to them for lawful governmental and historical purposes.

¹⁷ As to these several objectives of the legislature, see S. Rep. No. 93-1181, pp. 1, 3-4, 6 (1974); H. R. Rep. No. 93-1507, pp. 2-3, 8 (1974); 120 Cong. Rec. 31549-31550 (1974) (remarks of Sen. Nelson); *id.*, at 33849-33851; *id.*, at 37900-37901 (remarks of Rep. Brademas); *id.*, at 37905 (remarks of Rep. McKinney). See also §§ 102 (b), 104 (a) of the Act.